

TOWNSHIP OF NIPIGON

By-Law No. 1879

1877

A By-law to regulate the operation of Off-Road Vehicles
within the Township of Nipigon

WHEREAS pursuant to Section 191.8 (3) of the Highway Traffic Act, R.S.O. 1990, c.8, as amended, the Council of a Municipality may pass Bylaws permitting the operation and regulating the rate of speed of off-road vehicles on any highway within the Municipality that is under the jurisdiction of the Municipality, or any part or parts of such highway;

AND WHEREAS pursuant to Section 191.8 (4) of the Highway Traffic Act, R.S.O. 1990, c.8, as amended, a Bylaw passed under subsection 191.8 (3) of the Highway Traffic Act may permit the operation of off-road vehicles on any highway or on any part or parts of a highway only during specified months or hours;

AND WHEREAS Ontario Regulation 316/03 applies to the operation of off-road vehicles on highways;

AND WHEREAS the Council of the Township of Nipigon deems it expedient to pass a Bylaw to regulate the operation of off-road vehicles on highways under the jurisdiction of the Municipality;

NOW THEREFORE the Council of the Township of Nipigon enacts as follows:

SECTION 1 – DEFINITIONS

For the purpose of this by-law, the following words and phrases shall have the following meanings:

“All-Terrain Vehicle” means an off-road vehicle that;

- a) has four wheels, the tires of all of which are in contact with the ground;
- b) has steering handlebars;
- c) has a seat that is designed to be straddled by the driver;
- d) is designed to carry,
 - (i) a driver only and no passengers, or
 - (ii) a driver and only one passenger, if the vehicle,
 - (A) has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver, and
 - (B) is equipped with foot rests for the passenger that are separate from the foot rests for the driver;
- e) has headlights and tail lights that must be on at all times;
- f) must have an operating brake light; and
- g) has an all-terrain vehicle license plate and valid insurance.

“Extreme Terrain Vehicle” means an off-road vehicle that;

- a) has six or eight wheels, the tires of all of which are in contact with the ground;
- b) has steering handlebars;
- c) has a seat that is designed to be sat upon by the operator;
- d) is designed to carry,
 - (i) a driver and on passengers, or
 - (ii) has one passenger seat that is equipped for one passenger facing forward, and
- h) must not be modified.

“Highway” includes a common and public highway, street, avenue, parkway, driveway, square, place, bridge, crescent, viaduct or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof;

“Low Pressure Bearing Tire” means a wide, balloon-type tire with a rounded cross-section and no distinct shoulder area and that is designed to operate with inflation pressures of no greater than seventy kilopascals (70 kPa) or ten pounds per square inch (10 psi);

“Multi-purpose off-highway utility vehicle” means an off-road vehicle that,

- (a) has four or more wheels, the tire of which are all in contact with the ground,
- (b) has a steering wheel for steering control,
- (c) has seats that are not designed to be straddled,
- (d) has a minimum cargo capacity of 159 kilograms (350 lbs), and
- (e) has not been modified;

“Municipality” means the Corporation of the Township of Nipigon;

“Off-Road Motorcycle” means an off-road motorcycle that:

- a) has two wheels, the tires of all of which are in contact with the ground;
- b) has steering handlebars;
- c) has a seat that is designed to be straddled by the driver;
- d) no passengers are permitted at any time, and
- e) has not been modified;

"Off-Road Vehicle" means an off-road vehicle within the meaning of the Off-Road Vehicles Act O.Reg 316/03, s.1;

"Off Roads Vehicle Act" means the Off-Road Vehicle Act as amended, and regulations thereto;

"Recreational off-highway vehicle" means an off-road vehicle that,

- (a) has four or more wheels, the tires of which are all in contact with the ground,
- (b) has a steering wheel for steering control,
- (c) has seats that are not designed to be straddled, and
- (d) has an engine displacement equal to or less than 1,000 cubic centimeters;
- (e) has not been modified.

SECTION 2 – GENERAL

- 2.1 Any off-road vehicle, multi-purpose off-highway utility vehicle, recreational off-highway vehicle, or all-terrain vehicle as defined by this by-law are permitted to operate on highways within the municipality except as provided in Schedule A of this by-law or under the Highway Traffic Act and regulations made thereunder.
- 2.2 All applicable provisions of the Highway Traffic Act, R.S.O. 1990 as amended and Ontario Regulation 316/03 as amended shall apply to the operation of Off-Road Vehicles on any highway within the Municipality.

SECTION 3 – REGULATION OF ALL-TERRAIN VEHICLES ON HIGHWAYS

- 3.1 Any off-road vehicle, multi-purpose off-highway utility vehicle, recreational off-highway vehicle, or all-terrain vehicle as defined by this by-law shall not be operated on any highway within the Municipality unless it meets the equipment requirements of Sections 7 to 15 of Ontario Regulation 316/03 and it is operated in accordance with Sections 16 to 24 of Ontario Regulations 316/03, s.6.
 - 3.1.1 Any off-road vehicle, multi-purpose off-highway utility vehicle, recreational off-highway vehicle, or all-terrain vehicle as defined by this by-law must have a compliance label certifying it to one of the standards listed in Section 10 of Ontario Regulation 316/03 with the exception of off-road motorcycles and extreme terrain vehicles.
- 3.2 In accordance with Section 22 of the Highway Traffic Act – O. Reg. 316/03, no person shall operate an Off-Road Vehicle at a speed greater than twenty kilometers per hour (20 km/hr) upon any highway or service roadway or part thereof within the Municipality.
- 3.3 Operation of Off-Road Vehicles shall be permitted on the extreme right hand side of the highway road surface only and in accordance with Regulation 316/03 of the Highway Traffic Act and the Off Road Vehicles Act, as amended.
- 3.4 No person shall operate an Off-Road Vehicle over or upon the following areas:
 - a) on any private property without consent of the owner.
 - b) on any municipal public property without the written consent of the Municipality.
 - c) on or within the Nipigon Community Centre and/or recreation fields.
- 3.5 Operation and use of Off-Road Vehicles must be in accordance with the By-law 1365 of the Township of Nipigon "Noise By-law".

SECTION 4 – PENALTIES

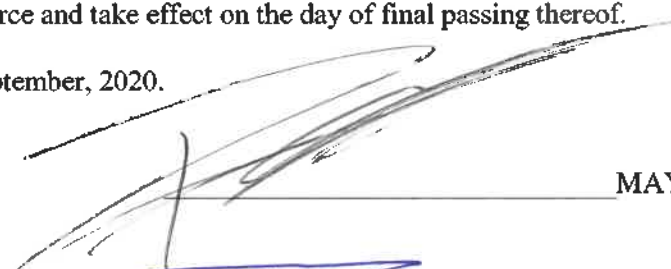
- 4.1 Any person who contravenes any section of this By-law is guilty of an offence and upon conviction is liable to a fine as provided for in the Provincial Offences Act.

SECTION 5 – REPEAL

- 5.1 That By-law 1282 of the Township of Nipigon and any other by-laws inconsistent with it are hereby repealed.

- 6. That this by-law shall come into force and take effect on the day of final passing thereof.

ENACTED and passed this 22nd day of September, 2020.


MAYOR


CLERK